RICHMOND FARM RESIDENTS' ASSOCIATION

v

AFC HOLDINGS LIMITED

and

THE MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER, AND RURAL DEVELOPMENT

and

THE MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS

and

CHIEF REGISTRAR OF DEEDS

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 23 February 2026 & 23 July 2026

Court application for review

T. Vudzijena, for the applicant
M. Vengesayi, for the 1st respondent
T. Undenge, for the 3rd and 4th respondents

DUBE-BANDA J:

[1] This is a court application for review filed in terms of s 4 of the Administrative Justice Act [*Chapter 10:28*]. The applicant seeks an order couched in the following terms:

a) That the application for review be and is hereby granted.
b) The offer letter issued to the first respondent by the third respondent be and is hereby set aside.
c) Consequently, the Deed of Transfer number 7534/22 issued pursuant to the first respondent's offer letter be and is hereby set aside.
d) The first, second and third respondents shall pay costs on an attorney client scale.

[2] The application is opposed by the first, second, and third respondents. The fourth respondent neither filed opposing papers nor sought to participate in the hearing of this matter. I believe that this respondent has taken a decision to abide by the decision of the court. For

convenience and where the context permits, the applicant shall be referred to as the "Association", the first respondent as "AFC", the second respondent as "the Minister of Lands" and the third respondent as "the Minister of Local Government."

Factual background

[3] This application will be better understood from the following background. The applicant is an association of farmers in occupation of Richmond Farm "the farm". The applicant has a written Constitution adopted by its members, and in the reading of r 11(2) of the High Court Rules, 2021, it has *locus standi* to sue and be sued in its name. There are 22 members who by their signatures adopted the applicant's Constitution. The first respondent is a limited company registered in terms of the laws of Zimbabwe. The second respondent is the Minister responsible for the administration of all agricultural land in Zimbabwe. The third respondent is the Minister under whose portfolio fall all local authorities in Zimbabwe. The fourth respondent is responsible, in terms of the Deeds Registries Act [*Chapter 20:05*], for land registration and issuance of title deeds in Zimbabwe.

[4] The dispute between the parties relates to Richmond Farm, measuring 1210,3799 hectares and situated in district Masvingo. In or about 2001, the members of the applicant were each allocated a piece of land for agricultural purposes in Richmond Farm and issued with an offer letter. The offer letters have not been withdrawn and are extant. Many years after the allocation of the pieces of land to the members of the applicant, the farm was allocated to the first respondent. The first respondent was issued with an offer letter and subsequently obtained a deed of transfer in respect of the farm. The applicant contends that its members were not informed that the farm had been allocated to the first respondent until the latter advised them that it was intending to commence construction at the farm. The applicant contends that its members' right to procedural fairness and due process was violated and undermined. It is against this background that the applicants filed this application seeking the order stated above.

Grounds of review

[5] The application is predicated and standing, in total, on six grounds of review, which are the following:

a) The second and third respondents committed a severe irregularity by issuing the first respondent with an offer letter without following due process as provided for by the law.

b) The second and third respondent acted irrationally by issuing offer letter to the first respondent without complying with the principles of administrative justice which include but not limited to the right to be heard and right to make representation before a decision affecting applicant's members was taken.
c) The second and third respondent acted irregularly and unreasonably by issuing the first respondent with an offer letter in respect of land which all members of the applicant have rights which rights arise from extant offer letters.
d) The second and third respondents acted grossly unreasonably and unfairly in issuing offer letter to the first respondent without consulting the current holders of the offer letters as is required by the law.
e) The second and third respondents acted grossly unreasonably when it issued offer letter to the first respondent in circumstances whereby the applicant's members offer letters have not been withdrawn and they are *ipso facto* extant and valid at law.
f) Assuming the decision to withdraw was made *albeit* without the applicant's knowledge, the second and third respondents acted unlawfully and irrationally by failing to notify the applicants (*sic*) of their decision to withdraw their offer letters before issuing out new offer letter to a third party because of their real and substantial interest in the land which they are in occupation of.

[6] An examination of all the grounds of review shows that the applicant is aggrieved by the fact that its members were not given an opportunity to be heard before the farm was allocated to the first respondent, and that this offer was done when the offer letters issued to its members were not withdrawn and still extant. It is in this context that the applicant contends that its members' right to procedural fairness was infringed and undermined.

The respective contentions of the parties

The applicant's case

[7] The applicant's case is that from 2001, the third respondent issued its members with offer letters in respect of Richmond Farm for agricultural purposes. The members of the applicant are said to have been paying taxes to the Ministry of Local Government from 2001 to 2024. In respect of 2025, some have paid, while others have not paid because the Ministry refused to accept their payments. It stated that they have been paying levies to the Ministry of Lands from

2001 to 2023. They have not paid since 2025 because the Ministry refused to accept their levy payments.

[8] It was contended that the first respondent has been issued with an offer letter in respect of the same farm in which the applicant's members hold offer letters. Pursuant to the offer letter, the first respondent has been issued a Deed of Transfer number 7534/22. It is contended that the applicants were neither informed nor had knowledge of the processes that led to issuance of the offer letter and the Deed of Transfer to the first respondent. The members are said to have become aware of the offer letter and the Deed of Transfer, on 14 May 2025 when this fact was communicated to them by the first respondent's legal practitioners. The first respondent has advised the applicant's members that it intends to start construction at the farm.

[9] The applicant submitted that the decision to issue the first respondent with an offer letter in respect of the land allocated and occupied by the members of the applicant was irregular, irrational and unreasonable, particularly in that its members' offer letters are extant. It was emphasised that the offer letters have not been withdrawn, and the applicant's members are in occupation of the farm, which they have been in occupation of since 2001.

[10] The applicant submitted further that the decision to issue the first respondent with an offer letter in respect of Richmond Farm is afflicted with procedural irregularities and illegality, in that there was breach of the *audi alteram partem* rule, in that the applicant's members were not heard before a decision adverse to their interests, rights and legitimate expectations was made. It was submitted that offer letters cannot be interfered with or invalidated without observance of the principles of natural justice, that is, the right to be heard. It was argued that the first respondent was issued with an offer letter outside the requirements of the law, in that there were extant offer letters in respect of the same land. The applicant stressed that the land is agricultural, and not urban as argued by the respondents. It was submitted that this was so because the land has not been converted from agricultural to urban land in terms of the requirements of the law. It was submitted that the applicant has made a case for the relief sought, and the application ought to be granted.

The First respondent's submissions

[11] In its opposing affidavit, the first respondent contends that it cannot speak to the process that was carried out in issuing the offer letter and the Deed of Transfer as that was done by the responsible authorities, that is the second and third respondents. It was averred that the first

respondent is an innocent beneficiary of the land in question. It was submitted that the court must take note of the fact that the land was in 2022 converted from farming land to urban land and was transferred from the second respondent to the third respondent. The first respondent was then tasked with developing an urban settlement on the land in accordance with the change of land use. It was contended that the applicant and its members are aware of the change of use of the land. It was argued that given that the land was converted from farming to urban, the applicant and its members cannot, at law carry out farming operations on the land. It was further submitted that since the applicant is not challenging the change of land use; the relief it seeks will not address the man problem or the underlying issue. It was submitted further that the appropriate remedy is for the applicant and its members to seek alternative farming land. It was argued that once land is converted from agricultural land to urban land, any offer letters held, by operation of law, fall off the way. The first respondent sought that the application be dismissed with costs on a legal practitioner and client scale.

The Second respondent's submissions

[12] The Minister of Lands, in his opposing affidavit deposed to by the Permanent Secretary, avers that in 2022 the Ministry of Lands handed over the land in dispute to the Ministry of Local Government. The decision was made because the land is to be incorporated into Masvingo Urban land, and the land is now under the administration of the Ministry of Local Government. It was stated that the Ministry of Lands is in the process of issuing withdrawals of offer letters from the applicant's members. It was stressed that the first respondent was given the mandate to be responsible for the development of the land and to transform it into urban residential stands. It is stated further that the Ministry of Lands flighted a newspaper advert with a notice of all withdrawal of the offer letters issued to the applicant's members. It is averred that there is no requirement at law for the Ministry of Lands to consult or involve the applicant's members in such a process, but only to notify them of the decision. The second respondent sought that the application be dismissed with costs.

The third respondent's submissions

[13] The Minister of Local Government in his opposing affidavit contends that the land was handed over to him by the Minister of Lands. The land was handed over for urban expansion in terms of a Master Plan. The Ministry of Local Government offered it to the first respondent for the development of the land. The third respondent sought that the application be dismissed.

The law and the facts

[14] As stated above, this is an application for review. In an application for review, a court is not concerned with whether the challenged decision is right or wrong. It is concerned with the decision-making process. In *Zvomatsayi & Ors* v *Chitekwe No & Anor* 2019 (3) ZLR 990 (H) the court said:

> "A review is not concerned with the merits of the decision but whether it was arrived at in an acceptable process. In a review the focus is on the process, and on the way in which the decision-maker came to the challenged decision. Instead of asking whether the decision was right or wrong, a court on review concerns itself with the procedural irregularities. LORD BRIGHTMAN in *Chief Constable of the North Wales Police v Evans* [1982] 3 AII ER 141 (HL) at 154d said judicial review is concerned, not with the decision, but with the decision making process. The court said unless that restriction on the power of the court is observed, the court will, under the guise of preventing the abuse of power, be itself guilty of usurping power. In a review, the court does not concern itself with the correctness of the decision, but whether it passes the legality test."

[15] This application is predicated on the provisions of the Administrative Justice Act [*Chapter 10:28*] "the Act". Section 3 (1) (a) and s 3 (3) (a)(b) (c) of the Act provide that:

> 3(1)(a) "An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests or legitimate expectations of any person shall—(a) act lawfully, reasonably and in a fair manner.
>
> 3(2) In order for an administrative action to be taken in a fair manner as required by paragraph (a) of subsection (1), an administrative authority shall give a person referred to in subsection (1)—
>
> (a) adequate notice of the nature and purpose of the proposed action; and
>
> (b) a reasonable opportunity to make adequate representations; and
>
> (c) adequate notice of any right of review or appeal where applicable."

[16] In essence, s 3 of the Act codifies the common law *audi alteram partem* rule (hear the other side). Procedural fairness in the form of *audi alteram partem* is concerned with giving people an opportunity to participate in the decisions that will affect them, and a chance of influencing the outcome of those decisions. It requires that individuals be given a fair opportunity to present their side of the case before a decision affecting their rights, interests, or legitimate expectations is made. This procedural safeguard ensures that decision-makers consider relevant representations and allows affected parties to know the case against them and

respond accordingly. The right forms part of the duty to act fairly imposed on public bodies exercising statutory or other public functions.

[17] The facts that emerge from this application are that in 2002 the applicant's members were allocated, in terms of offer letters, pieces of land at Richmond Farm. The offer letters have not been withdrawn and are extant. Mr *Vengesayi*, counsel for the first respondent, submitted that the land was repossessed by the President in terms of s 27 of the Land Commission Act [*Chapter 20:29*]. This submission is not persuasive, because there is no evidence that the land was repossessed by the President in terms of this provision. In addition, even if it was repossessed by the President, the applicant's members had a right to be heard before a decision to repossess the farm was made. Therefore, I find that without consultation or involvement of the applicant's members, the Government allocated Richmond Farm to the first respondent, which has obtained a Deed of Transfer in its name. Procedural fairness required that adequate notice be given of the proposed repossession; and a reasonable opportunity to make adequate representations be given before the members of the applicant's property rights were taken away. The argument that the Ministry of Lands flighted a newspaper advert with a notice of all withdrawal of the offer letters issued to the applicant's members is not supported by evidence. Even if it was, it will fall short of the threshold required by s 3 of the Act and the common law *audi alteram partem* rule. The argument that there is no requirement at law for the Ministry of Lands to consult or involve the applicant's members in such a process, but only to notify them of the decision was not seriously made. This is so because in terms of s 2 (1) of the Act says administrative action means any action taken or decision made by an administrative authority. Administrative authority means, among others, a Minister authorised by any enactment to exercise or perform any administrative power or duty. A Minister, when implementing legislation is performing administrative action, and by operation of law, he or she cannot act arbitrarily. His or her actions are subject to judicial control based on the principle of legality or any recognised ground of judicial review. Therefore, the applicant's members were condemned unheard, in a case where their rights, interests, and legitimate expectations are affected. It is this context that I accept that the process of offering the farm and subsequent issuing of the Deed of Transfer to the first respondent was done in flagrant violation of the applicant's members' rights to procedural fairness. It was not done in a fair manner. The decision-making process was procedurally unfair and irregular.

[18] I underscore, as it will appear below, that the finding the decision-making process was procedurally unfair and irregular is not dispositive of the matter. In other words, a finding of the non-existence of procedural fairness does not mean that the relief sought by the applicant ought to be granted.

[19] I now turn to the facts and circumstances that render the granting of the relief sought by the applicant untenable. The respondents argued that the land was converted from farming land to urban land. Mr *Vudzijena,* Counsel for the applicant, submitted that the land was not converted from agricultural to urban because the procedures prescribed in s 4(2) of the Urban Councils Act [*Chapter 29:15*] were not followed. In the alternative, it was argued that even if there was a such a conversion, the applicant's members, as holders of offer letters, still had a right to procedural fairness, in particular the right to be heard in a matter affecting their rights, interests, or legitimate expectations. I agree that the respondents have not tendered documentary evidence to show that the procedures for the conversion of the land from agricultural to urban were followed. But this does not mean that the conversion has not taken place. The alternative argument that even if the conversion has taken place, the applicant's members had a right to be heard cannot be gainsaid. But this does not mean that the relief sought ought to be granted.

[20] I accept that Richmond Farm was converted from farming land to urban land. This is so because the respondents have filed an amended Master Plan for Masvingo urban, designating the land comprising Richmond Farm as urban land. As a result of the change of land use, the Minister of Lands handed over the farm to the Minister of Local Government, whose ministry superintends over urban councils. It is because of these reasons that that the farm has been converted from agricultural land to urban land. In the circumstances, the applicant's members will not at law be permitted to use urban land for agricultural purposes. In other words, the land can no longer at law be used for agricultural purposes. Therein lies the first obstacle against the granting of the relief sought by the applicant.

[21] The second obstacle is that even if I set aside the offer letter and the Deed of Transfer, this will only amount to cold comfort to the applicant and its members. This is so because the land has been converted from agricultural land to urban land. The land can no longer at law be used for agricultural purposes. In addition, the Cabinet Directive that authorising the handover of the land to the Ministry of Local Government, for onward handing over to the first respondent, will remain extant. Further, the Master Plan for the development of the land to transform it into

urban residential stands remains extant. In other words, the Cabinet Directive and the Master Plan will not be affected by the relief sought by the applicant. In light of these facts, the relief sought by the applicant to set aside the offer letter and the Deed of Transfer is superficial and has not been properly thought out. This is so because it does not address the structure on which these documents sought to be set aside are anchored. These documents are anchored on the conversion of land use, the Master Plan, and the Cabinet Directive. If this superstructure is intact, setting aside the offer letter and the Deed of Transfer would serve no useful purpose. For completeness, this court will be straying out of its lane if it were to start to interrogate the conversion of land use, the Master Plan, and the Cabinet Directive. This is so because this has not been pleaded in the founding application and sought in the draft order. See *Chiwenga* v *Mubaiwa* 2020 (1) ZLR 1360 (S); *Nzara & Ors* v *Kashumba NO & Ors* 2018 (1) ZLR 194 (S). On the facts of this case, this court cannot stop the first respondent from transforming the land into urban residential stands. It is in this context that notwithstanding the infringement of the applicant's members' rights to procedural fairness, the remedies provided in s 4 of the Administrative Justice Act [*Chapter 10:28*] and not available to the applicant.

[22] What remains is the issue of costs. In my view there are circumstances which warrant a deviation from the general rule that costs follow the event. This is so because the applicant's members were in 2002 allocated pieces of land at the farm, and unknown to them, without being informed, without being heard, the land in which the farm is located was converted from agricultural land to urban land. Their offer letters were not withdrawn; in fact, the Permanent Secretary in the Ministry of Lands says the Ministry is in the process of issuing withdrawals of offer letters. These offer letters are sought to be withdrawn after the event. In addition, unknown to them, and without being heard, the land was offered to the first respondent, which subsequently obtained a Deed of Transfer in respect of the same land. In the circumstances, the fact that this application cannot succeed is not because the applicant's rights to procedural fairness were not infringed. It is a fact that the decision-making process was tainted with irregularity. It is because of events that have occurred which render the granting of the relief sought impractical or impossible. It is for these reasons that a no costs order will meet the justice of this case.

In the result, I make the following order:

The application is dismissed with no order as to costs.

Mtetwa and Nyambirai, applicant's legal practitioners
MawereSibanda Commercial lawyers, 1st respondent's legal practitioners
Civil Division of the Attorney General's Office, 2nd and 3rd respondents' legal practitioners